



# DropChain Marketplace Merchant Agreement

SIMPLIFYING THE WEB3 EXPERIENCE

**DropChain Marketplace Merchant Agreement**

This Merchant Agreement (the "Agreement") is entered into by and between DropChain Inc, a Delaware corporation ("DropChain"), and the undersigned merchant ("Merchant") as of the date of the Merchant's acceptance of this Agreement (the "Effective Date").

WHEREAS, DropChain operates a digital asset marketplace (the "Marketplace") where Merchants can list and sell their digital assets;

WHEREAS, Merchant desires to list and sell digital assets on the Marketplace, and DropChain desires to permit Merchant to do so, subject to the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

**Representations and Warranties**

Merchant represents and warrants that:

- (a) Merchant has the legal authority to enter into and be bound by this Agreement;
- (b) Merchant has the legal authority to sell the digital assets listed on the Marketplace;
- (c) The digital assets listed by Merchant on the Marketplace do not infringe upon any third-party rights, including but not limited to copyright, trademark, and intellectual property rights;
- (d) Merchant will comply with all applicable laws and regulations in its performance under this Agreement, including but not limited to tax regulations and data privacy regulations.

**Obligations of Merchant**

Merchant agrees to:

- (a) Provide clear, accurate, and complete information about the nature of the digital assets and any associated applications or services to the end user. Any deceptive or malicious tactics will result in the freezing of Merchant's funds in the Marketplace;

- (b) Maintain a transparent refund and return policy that is easily accessible and understandable to the end user;
- (c) Promptly respond to and resolve customer disputes, complaints, or inquiries to maintain a high level of customer satisfaction;
- (d) List its digital assets on the Marketplace in compliance with the rules and guidelines set forth by DropChain, and understand that failure to follow such rules may result in penalties, including but not limited to the freezing of Merchant's funds in the Marketplace;
- (e) Notify DropChain of any changes to its business that could impact the nature of the digital assets listed or the terms of this Agreement;
- (f) Periodically review and update its digital asset listings to ensure they are current, accurate, and compliant with the DropChain Marketplace rules.

### **Fees and Charges**

Merchant acknowledges and agrees to the following fees and charges:

- (a) Credit card processing fees: A credit card processor fee of 0.35% + \$0.30 will be applied to credit card transactions;
- (b) Coinbase fees: When purchases are made with cryptocurrency, credit card processing fees will be replaced with Coinbase Commerce fees, which are 2%;
- (c) Chargeback fees: DropChain will be charged \$45 per chargeback. DropChain will accept and cover chargebacks within market rates for Merchant (1% of transaction volume). If chargebacks exceed 1% of transaction volume, Merchant will be responsible for covering the additional chargeback fees out of its deferred funds.
- (d) Marketplace platform fee: A 7.5% marketplace platform fee will be paid to DropChain Inc after the (a) and (b) fees have been applied to the transaction.

### **Reputation Score**

Merchant's reputation score will increase as they generate more sales within the Marketplace. A higher reputation score may result in lower fees and special for Merchant.

### **Indemnification**

Merchant agrees to indemnify, defend, and hold harmless DropChain and its affiliates, directors, officers, employees, and agents from any and all claims, liabilities, damages, losses, or expenses, including reasonable attorneys' fees and costs, arising out of or in connection with Merchant's breach of this Agreement, Merchant's digital assets, or Merchant's use of the Marketplace.

**Term and Termination**

- (a) This Agreement shall commence on the Effective Date and shall continue until terminated by either party as set forth herein.
- (b) Either party may terminate this Agreement with or without cause upon providing thirty (30) days' written notice to the other party.
- (c) Upon termination of this Agreement, any outstanding obligations or unpaid fees must be settled promptly, and Merchant shall immediately cease listing and selling its digital assets on the Marketplace.

**Modifications**

DropChain reserves the right to modify the terms of this Agreement or impose new conditions at any time, with appropriate notice to Merchant. Merchant's continued use of the Marketplace after such modifications or the imposition of new conditions shall constitute acceptance of the modified Agreement.

**Confidentiality**

Merchant agrees to keep confidential any non-public information obtained from DropChain in connection with this Agreement or the Marketplace, including but not limited to DropChain's pricing, fees, and reputation score system. Merchant shall not disclose such confidential information to any third party without DropChain's prior written consent, except as required by law.

**Governing Law**

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflicts of law principles. Any disputes arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the state and federal courts located in the State of Delaware.

**Entire Agreement**

This Agreement, together with any exhibits or schedules attached hereto, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior agreements, understandings, negotiations, and discussions, whether oral or written, between the parties.

**Severability**

If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified by the court and interpreted so as best to accomplish the objectives of the original provision to the fullest extent permitted by law, and the remaining provisions of this Agreement shall remain in full force and effect.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

DropChain Inc

By: \_\_\_\_\_  
Name: \_\_\_\_\_  
Title: \_\_\_\_\_

Merchant

By: \_\_\_\_\_  
Name: \_\_\_\_\_  
Title: \_\_\_\_\_

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